THE STATE

Versus

CRISPEN GOMORE

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 05 JUNE 2026

Assessors: Mrs Tshuma
Mr Sibanda

Criminal trial

J Uladi, for the state
L Mudau, for the accused

NDUNA J: The accused, Chrispen Gomore, stands charged with the crime of murder as defined in Section 47(1)(a) of the Criminal Law (Codification and Reform) Act [Chapter 09:23], following the tragic death of the deceased, a member of his congregation.

On March 6, 2023, at approximately 12:00 hours, Fortunate Mukwayi and the deceased arrived at the church shrine to pray. Following a disagreement with a pastor, Philip Banga, the couple was shackled with chains and tied to a tree under the allegation that they were mentally disturbed. They remained tied to the tree throughout the night. Later that afternoon, their children, including their daughter Samantha Mukwayi, were brought to the shrine from their residence by another church member, Lazarus Chikova.

On the morning of March 7, 2023, at approximately 08:00 hours, the deceased and her husband were taken to the Limpopo River for baptism and the casting out of demons. Upon their return to the shrine at approximately 09:00 hours, they were placed inside a room. The accused entered the room holding a leather whip and proceeded to assault both the deceased and Fortunate Mukwayi.

According to eye-witness testimonies, the assault continued intermittently from 09:00 hours until late into the night. During the incident, Fortunate Mukwayi struck the accused in an

attempt to protect his wife, but the assault persisted until the deceased lost consciousness. Fortunate Mukwayi subsequently lost consciousness as well.

On March 8, 2023, at approximately 09:00 hours, members of the Zimbabwe Republic Police arrived at the shrine to investigate. Fortunate Mukwayi was conveyed to Beitbridge Hospital for medical treatment. The deceased was pronounced dead, and her body was transported to the mortuary. A subsequent post-mortem examination, conducted by pathologist Dr. Juana Rodriguez Gregori, determined the cause of death to be encephalic contusion, cranial trauma, and assault.

Evaluation of the Evidence

The first state witness, Fortunate Mukwayi the husband of the deceased testified that the accused placed them in a room and indiscriminately assaulted them all over their bodies with a leather whip. Fortunate watched ruthlessly as his wife screamed, and despite their desperate pleas for the beating to stop, the accused was not deterred.

The evidence of, Samantha Mukwayi was admitted through s314 of the CPEA. She testified that she observed the accused enter the room holding a leather whip, and she witnessed him whipping her parents from approximately 09:00 hours until late at night. While this timeframe is an estimation by a young witness, it undoubtedly demonstrates that the assault occurred over a profoundly prolonged duration.

Exhibit 1 which is Post-mortem report number 301-229-23, compiled by pathologist Dr. Juana Rodriguez Gregori, concludes that the cause of death was encephalic contusion, cranial trauma, and assault. The report records clear injuries to the head of the deceased

LAW

The pivotal question that this court must answer is whether the accused's actions satisfy the legal threshold of *dolus eventualis*, or if his conduct amounts to the negligence, or an acquittal.

To establish liability for murder via *dolus eventualis*, a strict distinction must be maintained between subjective foresight and objective foreseeability. In *S v Mugwanda* 2002 (1) ZLR 574 at page 579g, the court detailed this distinction

> "The fact that objectively the accused ought reasonably have foreseen such possibility is not sufficient. The distinction must be observed between what actually went on in the mind of the accused and what have gone on in the mind of a bonus paterfamilias in the position of the accused. In other words, the distinction between subjective foresight and objective foreseeability must not become blurred. The factum probandum is dolus, not culpa. These two different concepts never coincide. Subjective foresight, like any other factual issue, may be proved by inference. To constitute proof beyond reasonable doubt, the inference must be the only one which can reasonably be drawn. It cannot be so drawn if there is a reasonable possibility that subjectively the accused did not foresee, even if he ought reasonably to have done so, and even if he probably did so."

This position is supported by the Supreme Court decision in *Spencer Sithole v The State* 24-SC-014, where MAVHANGIRA JA cited the dicta from *S v Humphreys* 2015 (1) SA 491 (SCA) at paragraph 13:

> "… like any other fact, subjective foresight can be proved by inference. Moreover, common sense dictates that the process of inferential reasoning may start out from the premise that, in accordance with common human experience, the possibility of the consequences that ensued would have been obvious to any person of normal intelligence. The next logical step would then be to ask whether, in the light of all the facts and circumstances of this case, there is any reason to think that the appellant would not have shared this foresight, derived from common human experience, with other members of the general population."

Furthermore, as established in *S v Ngubane* 1985 (3) SA 677 (A) at 685A-H, the State must prove that the accused reconciled himself with the consequences of his conduct which he subjectively foresaw

APPLICATION OF THE LAW

The defense rebuts the allegation of an intention to kill by noting that Fortunate Mukwayi was subjected to the same assault and survived.

A factual discrepancy exists regarding the head injuries recorded in the post-mortem report. Both eyewitnesses, Fortunate and Samantha Mukwayi, testified exclusively to the use of a leather whip during the assault. The evidence does not clearly establish how the blunt-force cranial trauma was sustained. Consequently, an inference of direct or eventual intent to cause death cannot be conclusively drawn as the only reasonable inference.

The defense further argued that the deceased and Fortunate Mukwayi were members of the accused's church, and that prior to the accused's arrival, they had been shackled by other

congregants following a scuffle. The evidence shows that the initial scuffle occurred between Fortunate Mukwayi and pastor Philip Banga, not involving the deceased. Fortunate Mukwayi's testimony explicitly identifies the bishop (the accused) as the individual who subsequently assaulted them in the room.

Applying the principles above the evidence does not establish that the accused subjectively realized his manner of assault with a leather whip would lead to the death of the deceased, nor that he reconciled himself to that consequence. There is an absence of the subjective, volitional mental state required for *dolus eventualis*. The State has fell short of discharging its onus to establish this specific legal intent beyond a reasonable doubt.

However, the length of the assault demonstrates that the accused acted recklessly and without due regard for human life. By conducting a prolonged, assault and the accused was identified as then only person who had assaulted the deceased. The court can only reasonable draw an inference that the accused unlawfully caused the death of the deceased through negligent conduct. The averment that the deceased consented to traditional or religious healing which involves assault does not hold water, even if such inference can be drawn the deceased did not consent to death. Her death was caused by the prolonged assault by the accused.

Accordingly, the accused is found not guilty of Murder, but is found guilty of Culpable Homicide.

SENTENCE

Accused stands convicted of the crime of culpable homicide as defined in Section 49 of the Criminal Law (Codification and Reform) Act [Chapter 9:23].

In determining an appropriate sentence, this court is enjoined to balance the well-established triad of sentencing, namely the personal circumstances of the offender, the seriousness of the offence, and the interests of society. The court must also ensure that while mercy remains an important component of justice, it must not overshadow the need for accountability and deterrence.

In mitigation, the court has taken into account that you are a first offender with no previous convictions involving violence. You have 3 wives and 12 children who are wholly dependent on you

However, the aggravating features of this matter are overwhelming and substantially outweigh the mitigating circumstances. You occupied a position of authority and trust as the spiritual leader and Bishop of the Damasko Zion Christian Church. The deceased and her husband sought spiritual guidance and protection from you, yet you grossly abused that trust.

The assault perpetrated upon the deceased was long the assault and persisted intermittently from morning until late at night, notwithstanding the screams of the deceased and the pleas made by her husband. Your conduct displayed a gross disregard for human life and dignity.

This court cannot ignore the increasing prevalence of violence perpetrated under the guise of spiritual discipline or religious authority. Human life is sacred and enjoys constitutional protection. The courts are duty-bound to protect vulnerable persons and to send a strong message that religious standing or spiritual authority can never serve as a shield for criminal conduct.

Despite that the accused being a bread winner for a large family a custodial sentence would be appropriate. People must always treat others with respect.

The degree of negligence exhibited in this matter borders on recklessness of the highest order. A non-custodial sentence would trivialise the gravity of the offence, undermine public confidence in the administration of justice, and fail to adequately reflect society's denunciation of the conduct in question.

Accordingly, the accused is sentenced to 10 years imprisonment.

National Prosecuting Authority, state's legal practitioners
Teererai Legal Practice, accused's legal practitioners